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Case Number: 24PSCV01192 Hearing Date: September 16, 2026 Dept: G

Defendant Sunshine Village Homeowners Association's Motion for Summary Judgment

Respondent: Plaintiffs Jian Wu and Owen Wu

TENTATIVE RULING

Defendant Sunshine Village Homeowners Association's Motion for Summary Judgment is DENIED.

BACKGROUND

This is a premises liability action. On August 5, 2022, Haiyan Ma (Ma) drowned at a pool in the defendant Sunshine Village Homeowners Association (Sunshine Village) community. Ma is survived by her husband, plaintiff Jiang Wu, and her son, plaintiff Owen Wu (collectively, the Wus). The specific property Ma visited before she drowned is owned by defendant Kevin Yeh Lin (Lin). Defendant Wei Lin Peng Ng (Ng) allegedly gave the Wus access to Sunshine Village.

On April 12, 2024, the Wus filed the Complaint. On August 13, 2025, the Wus filed the operative Amended Complaint, alleging causes of action for (1) general negligence and (2) premises liability.

On September 5, 2025, Lin filed a Cross-Complaint, alleging causes of action for (1) breach of contract, (2) breach of fiduciary duty, (3) equitable indemnity, (4) apportionment of fault, (5) express indemnity, (6) contribution, and (7) declaratory relief.

On October 10, 2025, Sunshine Village filed a Cross-Complaint, alleging causes of action for (1) implied indemnity, (2) equitable indemnity, (3) contribution, and (4) declaratory relief.

On June 18, 2026, Sunshine Village filed this motion for summary judgment. On August 27, 2026, the Wus filed the opposition, and on September 4, 2026, Sunshine Village filed the reply.

The motion is set for hearing on September 16, 2026.

REQUESTS FOR JUDICIAL NOTICE

The Wus request that the court take judicial notice of the records of the Los Angeles County Department of Public Health and portions of the California Code of Regulations and the California Administrative Code. The court may take judicial notice of the statutory law of any state, regulations issued by any public entity in the United States, and facts and propositions that are not reasonably subject to dispute. (See Evid. Code, § 452, subds. (a)–(b), (h).) Thus, the court takes judicial notice of the requested records.

EVIDENTIARY OBJECTIONS

The Wus object to a surveillance video of the drowning incident and facts in the separate statement. (See UMF Nos. 17–18, 20–28, 30–38.) The California Rules of Court provides that on a motion for summary judgment, “Objections to specific evidence must be referenced by the objection number in the right column of a separate statement in opposition or reply to a motion, but the objections must not be restated or reargued in the separate statement.” (Cal. Rules of Court, rule 3.1354.) However, “[a]ll written objections to evidence must be served and filed separately from the other papers in support of or in opposition to the motion.” (Cal. Rules of Court, rule 3.1354, emphasis added.) Even though the Wus complied with the portion of the rule that requires them to reference objections in the separate statement, the Wus failed to comply with the portion of the rule requiring that written objections also be filed separately. Nevertheless, ruling on the merits of the objections, the court overrules the objections in the following UMF numbers: 17–18, 20–28, 30–38.

Sunshine Village objects to portions of the declaration of the Wus’ licensed civil engineer. The following objections are overruled: 1–3.

ANALYSIS

Sunshine Village moves for summary judgment on the ground that it did not breach its duty of care. For the following reasons, the motion is DENIED.

Legal Standard

A motion for summary judgment or adjudication provides “courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) In a motion for summary judgment or summary adjudication, “the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) It must be granted “if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, quoting Code Civ. Proc., § 437c, subd. (c).) A defendant moving for summary judgment or summary adjudication “has met [their] burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).)

To establish a triable issue of material fact, the opposing party must produce substantial responsive evidence. (See Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.) “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

Discussion

Sunshine Village argues that it is entitled to judgment to both causes of action in the Amended Complaint because it did not breach a duty of care it owed to Ma. The court disagrees.

The elements of premises liability are the same as those for negligence: (1) duty, (2) breach, (3) causation, and (4) damages. (See *Castellon v. U.S. Bancorp* (2013) 220 Cal.App.4th 994, 998.) “Premises liability is grounded in the possession of the premises and the attendant right to control and manage the premises.” (*Kesner v. Super. Ct.* (2016) 1 Cal.5th 1132, 1158, cleaned up.) So regarding the element of duty, “[b]efore liability may be thrust on a landlord for a third party’s injury due to a dangerous condition on the land, the plaintiff must show that the landlord had actual knowledge of the dangerous condition in question, plus the right and ability to cure the condition.” (*Garcia v. Holt* (2015) 242 Cal.App.4th 600, 604.)

The parties’ briefs only dispute the element of breach, so the court only examines the undisputed material facts related to that element.

Moving Party’s Burden

Sunshine Village meets its initial burden to show that it did not breach its duty because it complied with the relevant health and safety codes and regulations. Here, Sunshine Village argues that its duties are governed by Health and Safety Code sections 116049.1, 116045, and 115922 and Los Angeles County Code section 11.32.040. (See UMF No. 19.) According to the Sunshine Village Rules and Regulations, the pool was secured by a self-closing, self-latching gate, which was to remain locked. (See UMF Nos. 8, 11.) According to Sunshine Village’s consultant, the pool had a rescue pole/body hook and floatation device in plain sight on the date of the incident. (See UMF No. 12.)

Sunshine Village also presents evidence that there was a sign that informed pool guests that there was “No Lifeguard on Duty.” (UMF No. 13.) The consultant also affirms that the pool had depth markers along the edges, a stripe differentiating the shallow end from the deep end, and a handrail along a portion of the deep end. (See UMF Nos. 15–16.) In the consultant’s opinion, the pool’s safety features, layout, and design complied with Health and Safety Code sections 116049.1, 116045, and 115922 and Los Angeles County Code section 11.32.040. (See UMF No. 19.) Thus, the court finds that Sunshine Village’s evidence demonstrates that it complied with the relevant regulations governing the pool.

Since Sunshine Village’s evidence establishes that it complied with the relevant regulations, the burden shifts to the Wus to show a triable issue of material fact that Sunshine Village breached its duty to protect Ma from drowning. (See *Sangster*, supra, 68 Cal.App.4th at 166.)

Opposing Party’s Burden

The Wus argue that Sunshine Village’s duties include compliance with Code of Regulations, title 22, section 65540 and Code of Regulations, title 24, sections 2-9014 and 3110B.4.3. (See UMF No. 19; see also AMF No. 37.) According to an official inspection report, the Sunshine Village pool only had one floatation device and rescue pole/body hook, even though two of each were required for a pool of that size. (See UMF No. 12; see also AMF Nos. 25–29.) Additionally, the official inspection report documents that the rescue pole/body hook was on the ground and partially hidden by shrubbery. (See UMF No. 12; see also AMF Nos. 25–29.) Though the pool had depth markers along the edges, the official inspection report also documents that the depth markers were incorrect. (See UMF No. 15; see also AMF Nos. 25, 30–31.) In the opinion of the Wus’ licensed civil engineer, the pool’s safety features failed to comply with Code of Regulations, title 22, section 65540 and Code of Regulations, title 24, sections 2-9014 and 3110B.4.3. (See UMF Nos. 12, 15, 19; see also AMF Nos. 21, 28–31, 38.)

Thus, the court finds that the Wus’ evidence raises a triable issue as to Sunshine Village’s compliance with the applicable and relevant regulations governing the pool.

As such, the Wus meet their burden of establishing a triable issue of material fact whether Sunshine Village breached the duty they owed to Ma.

Accordingly, the motion for summary judgment is DENIED.

CONCLUSION

Based on the above analysis, Defendant Sunshine Village's motion for summary judgment is DENIED.